

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/09/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.
Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

1. 9:00 AM CASE NUMBER: L24-00215
CASE NAME: THE BEST SERVICE CO., INC. VS. RON JOHNSON
*HEARING ON MOTION IN RE: FOR DEFAULT ON CONDITIONAL SETTLEMENT AGREEMENT AND
STIPULATION FOR JUDGMENT
FILED BY: THE BEST SERVICE CO., INC.
TENTATIVE RULING:

Plaintiff The Best Service Co., inc. ("Plaintiff") filed a Motion for Default on Conditional Settlement Agreement and Stipulation for Judgment on September 25, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 9, 2025.

Background

The parties entered into that certain settlement agreement filed March 28, 2024 (the "Settlement Agreement"), the terms of which included a stipulation for entry of judgment in the amount of \$11,282.78 (principal, including prejudgment interest, of \$9,387.69, attorneys' fees of \$1,572.59, and \$322.50 in costs) with provisions for satisfaction by a settlement payment by the defendant Ron M. Johnson ("Defendant") in the amount of \$9,000.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Christopher Vasquez filed September 25, 2025 as part of the Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶14 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into in the event of a default. *Id.*, **Exhibit A**, ¶¶1 and 3.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶15. Defendant failed to cure after notice. *Id.* at ¶16 and **Exhibit B** thereto.

After credit for amounts paid, Plaintiff contends that it is entitled to a total judgment of \$11,955.31 after credit for amounts paid. See Supporting Declaration, ¶¶15 and 7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

The Settlement Agreement provides for entry of judgment for certain sums. See Settlement Agreement, ¶1, Supporting Declaration, **Exhibit B**. Those sums do not include further prejudgment interest running after the stipulated amount calculated through February 27, 2024. The principal plus stipulated prejudgment interest set forth in the agreement total \$9,387.69. Deducting the four acknowledged payments of \$150.00 (\$600.00 total) leaves a balance of \$8,787.69.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.

3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,787.69, plus costs of \$322.50 and attorneys' fees of \$1,572.59, for a total judgment of \$10,682.78.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L25-08135

CASE NAME: SYNCHRONY BANK VS. MARISSA HARVEY

*HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AND STAY PROCEEDINGS

FILED BY:

TENTATIVE RULING:

Defendant Marissa Harvey ("Defendant") filed a Motion to Compel Arbitration and Stay Proceedings on November 7, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on December 9, 2025.

No proof of service of the motion on the plaintiff Synchrony Bank ("Plaintiff") and the Plaintiff has not otherwise filed any papers regarding the Arbitration Motion.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary

to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant’s motion contends that the parties’ contract “contains a mandatory arbitration clause ...” See Declaration of Marissa Harvey attached as part of Arbitration Motion, ¶13 and **Exhibit A** (excerpt of cardmember agreement with arbitration clause) (the “Arbitration Clause”).

It appears that a written agreement to arbitrate exists between the parties. It is also evident that the claims at issue in this action are within the scope of and subject to that agreement.

Defendant’s motion constitutes a demand and notice for arbitration in accordance with the terms of the Arbitration Clause. See Arbitration Clause, ¶7 (“The party who wants to arbitrate must notify the other party in writing. This notice can be given after the beginning of a lawsuit or in papers filed in the lawsuit.”). The Arbitration Clause is governed by the FAA. *Id.* at ¶11 (“This Arbitration section is governed by the FAA.”).

Accordingly, the Court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

However, no Proof of Service was filed by Defendant regarding service of the motion papers on Plaintiff. For this reason, although the Court is inclined to grant the motion for the reasons discussed above, the Court hereby continues the motion to a new hearing date to permit the moving party Defendant to properly serve the motion papers on Plaintiff and file a Proof of Service.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is CONTINUED to **January 13, 2026, 9:00 am, Department 14 (Judge Athanasiou)**. Defendant is ordered to serve the motion papers on Plaintiff forthwith, **along with a copy of this Order**, and to file a Proof of Service with the Court showing such service.
2. If the Plaintiff concedes that there exists a binding arbitration covering the parties’ dispute, the parties are encouraged to meet and confer regarding a stipulation to

participate in arbitration and to vacate the hearing date on the motion.

3. 9:00 AM CASE NUMBER: L25-09463
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. LASHANA STARETON
*HEARING ON MOTION IN RE:
FILED BY:
TENTATIVE RULING:

Defendant LaShana Stareton (“Defendant”) filed a Motion to Quash Service of Summons on October 10, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on November 18, 2025.

Defendant failed to give adequate notice of the motion. **Service on the opposing party was not timely done in advance of the motion hearing date.** For service by mail, the minimum notice in advance of the hearing date is sixteen (16) court days, plus five (5) additional calendar days due to service by mail. See Code Civ. Proc. § 1005 and 1013.

A Proof of Service was filed November 4, 2025, reflecting service of the Motion to Quash on Plaintiff on November 3, 2025. That was only nine (9) court days before the hearing date of November 18, 2025.

In the exercise of its discretion, the Court continued this matter to a new hearing date, as set forth below, to ensure that Plaintiff was given adequate notice of the motion. The Court issued its Order dated November 18, 2025 continuing the hearing date to December 9, 2025, which was duly served on all parties.

No opposition has been filed.

Background

Plaintiff Midland Credit Management, Inc. (“Plaintiff”) filed this action on August 25, 2025, alleging a cause of action for breach of contract to collect on an alleged unpaid account in the amount of \$11,713.30.

Analysis

Code of Civil Procedure section 418.10 sets forth a number of different procedural actions that a defendant may take on or before the last day of his or her time to plead (or as otherwise allowed by the court). See Code Civ. Proc. § 418.10(a). Among those is the filing of a motion to quash service of summons on the ground of lack of jurisdiction. *Id.* This includes where a defendant contends that service of the summons was defective. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”), § 4:413-414.

A Proof of Service was filed on September 11, 2025 (the “9/11/25 POSS”), purporting to reflect personal service upon Defendant on September 10, 2025 by a registered process server with ABC Legal Services, LLC. See 9/11/25 POSS, ¶¶1-5.

Defendant's Motion to Quash contends that service is defective because personal service was never done, as the papers were left on the windshield of Defendant's vehicle:

September 10, 2025 around 7:45pm I went to my car abd found the summons on my windshield

See Motion to Quash, p. 1.

The service here was done by a registered process server. See 9/11/25 POSS at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant's evidence fails to rebut the presumption of valid service arising from the 9/11/25 POSS.

The 9/11/25 POSS recites the fact of personal service, by "drop service." As long as a process server identifies themselves and tells a reluctant defendant that the defendant is being served with process and, thereafter, leaves the papers as close as possible to the defendant, service is valid. *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260 (personal service accomplished by placing papers under vehicle windshield wiper in plain view of the defendant after defendant refused to accept service); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 4:187.

As noted in the 9/11/25 POSS, Defendant refused to open the residence door to receive the papers, which permitted the process server to serve by placing the papers where they could be "seen by subject," presumably on the vehicle as stated by the Defendant:

5. I served the party (check proper box)

- a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **09/10/2025** at (time): **7:25 PM**
LASHANA I STARETON, I delivered the documents to LASHANA I STARETON with identity confirmed by subject saying yes when named. The individual tried to refuse service by not opening door and looking out blinds said she was her (documents left, seen by subject). The individual appeared to be a black-haired black female contact 35-45 years of age.

See 9/11/25 POSS, ¶5.

Defendant's one-line recitation of the fact of service by leaving the papers on her vehicle fails to persuasively demonstrate that service was not properly done and appears to strategically omit any discussion of the broader circumstances of the service attempt.

Procedurally the motion is also defective in that motion is not supported by a proper declaration signed under penalty of perjury. The one-line statement in the motion is, therefore, not admissible evidence of the lack of service sufficient to rebut the presumption of valid service.

Disposition

The Court further finds and orders as follows:

1. The Motion to Quash is DENIED.
2. Pursuant to Code of Civil Procedure section 418.10(b), Defendant shall file and

serve a responsive pleading, such as an Answer, within **fifteen (15) days** after notice of entry of this order.

4. 9:00 AM CASE NUMBER: MSL17-02911
CASE NAME: MERCHANTS ACCEPTANCE VS SMITH
***HEARING ON MOTION IN RE: VACATE DEFAULT JUDGMENT**
FILED BY:
TENTATIVE RULING:

Defendant and judgment debtor Senekeya Smith (“Defendant”) filed a Motion to Vacate Default Judgment on November 7, 2025 (“Motion to Vacate Default Judgment”). The Motion to Vacate Default Judgment was set for hearing on December 9, 2025. The motion is opposed.

Background

Plaintiff and judgment creditor Merchants Acceptance Corporation (“Plaintiff”) filed a Complaint on July 21, 2017.

A Proof of Service of Summons was filed January 18, 2018 (the “1/18/18 POSS”). The 1/18/18 POSS reflects service on Defendant by **substitute service on August 8, 2017**, at 7:44 pm by delivery to a “JOHN DOE” who was described as a “CO-OCCUPANT.” 1/18/18 POSS at ¶¶3-5.

4. Address where the party was served:
349 FOXGLOVE STREET
PITTSBURG, CA 94565

5. I served the party

b.by substituted service. On (date): 08/08/17 at (time): 07:44 PM I left the documents listed in Item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
“JOHN DOE”
MALE AFRO-AMER 40 YRS 6’01” 190 LBS
CO-OCCUPANT

1/18/18 POSS, ¶¶4-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on February 15, 2018 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on March 13, 2018 (the “Default Judgment”) in the amount of \$2,821.76.

Defendant filed the Motion to Vacate Default Judgment in November 2025. The motion is supported by the Declaration of Senekeya Smith filed November 7, 2025 as part of the motion papers (the “Supporting Declaration”).

Plaintiff filed its Opposition to Defendant’s Motion to Vacate Default Judgment (the “Opposition”) on November 25, 2025. The Court notes that although the Opposition makes various factual averments, it was not supported by any proper declaration. The

Court will take the statements made as argument, based on what can be gleaned from the Court's record in this case.

The Court hereby takes judicial notice of the records contained in the Court's file to the fullest extent allowable by law. The Court may, in its discretion, take judicial notice of court records. Evid. Code, § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of each document in a court file, they may not take judicial notice of the truth of matters in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2025 Edition) § 7:12. The Court otherwise disregards any factual statements made in the Opposition and any attachments thereto other than court records.

Analysis

1. Defendant Fails To Demonstrate That Service Was Defective.

Defendant contends that Defendant "never received the summons or complaint in this case." See Supporting Declaration, Ins. 12-13. Defendant states that the person was served at a previous address in Pittsburg and that Defendant only became aware of the case in October 2025 when Defendant received notice of a writ of execution. *Id.* at Ins. 13-16.

13 summons or complaint in this case. The Proof of Service shows a "John Doe (Male)" served at my
14 previous address in Pittsburg, CA, five months after service was purportedly made. I moved to 1812 Mt.
15 Goethe Court, Antioch, CA on October 1, 2017, after the sale of my prior residence. I only became
16 aware of this case in October 2025 when I received notice of a new writ of execution. I was on maternity

Defendant also describes other life circumstances that "prevented [her] from acting earlier." *Id.* at Ins. 16-19.

As noted above, the service was done by a registered process server. 1/18/18 POSS, ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court does not find that the proffered evidence rebuts that presumption. No specific and credible evidence has been offered sufficient to rebut the process server's proof of service reflecting valid substitute service on Defendant. Nothing in Defendant's Supporting Declaration denies that Defendant was residing at the 349 Foxglove Street residence in Pittsburg at the time of the service on August 8, 2017. Indeed, Defendant recites that Defendant did not move Defendant's residence until October 1, 2017. Defendant does not otherwise provide specific and credible evidence sufficient to establish that Defendant was not properly served by substitute service on August 8, 2017.

2. Defendant Fails To Establish That The Default And Entry Of Judgment Thereon

Are Void.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397.

The evidence proffered by Defendant does not establish any grounds for the Court to conclude that the Default or the Default Judgment are somehow void. No extrinsic fraud or mistake is shown by the proffered evidence.

3. Defendant Fails To Establish That The Default and/or Default Judgment Resulted From Mistake, Inadvertence, Surprise, Or Excusable Neglect.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

As discussed above, the evidence proffered by Defendant does not address the circumstances of the service and the failure to timely respond, much less make any factual showing of any specific mistake, inadvertence, surprise, or excusable neglect that led to the Default. The relevant time period is that between the service in August 2017 and the entry of Default on February 15, 2018. However, Defendant’s Supporting Declaration quite literally says nothing about what was happening during that time period other than to recite the fact that Defendant moved after the service was done. Life circumstances occurring in 2024 and 2025 are not relevant to the failure to timely respond in 2017. Defendant has not shown the existence of any mistake, inadvertence, surprise, or excusable neglect on the

part of Defendant that led to the Default and/or Default Judgment.

4. Defendant Fails To Demonstrate That Defendant Did Not Have Actual Notice Of The Pending Lawsuit.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Defendant has not demonstrated a lack of actual notice in time to defend the action.

First, the Court does not find credible Defendant’s assertion that Defendant “only became aware of this case in October 2025...” See Supporting Declaration, Ins. 15-16. Court records show that, as early as 2019, Defendant was being served with judgment collection paperwork at the 1812 Mt. Goethe Court address in Antioch that she admits was her residence as of October 1, 2017. See e.g. Memorandum of Costs filed October 21, 2019; see Supporting Declaration, Ins. 14-15. This belies Defendant’s assertion that Defendant was not aware of the existence of the lawsuit until late 2025 and Defendant has not otherwise proffered persuasive evidence to demonstrate otherwise.

Second, and most importantly, as pointed out in the Opposition papers, the request to vacate the Default and Default Judgment on this ground is untimely. Relief under Code of Civil Procedure section 473.5 is time barred. See Code Civ. Proc. § 473.5(a) (“The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”). Defendant’s motion was brought more than two years after the entry of the subject Default Judgment. Indeed, the Default and Default Judgment were entered more than seven years ago. This would exceed even the longer outside time limits for cases involving a plaintiff “debt buyer.” See *id.* at § 1788.61(a)(2).

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Default Judgment is DENIED.

5. 9:00 AM CASE NUMBER: MSL21-03557
CASE NAME: BANK OF AMERICA, N.A. VS. JEFFREY KRATO
***HEARING ON MOTION IN RE: ORDER VACATING DISMISSAL AND ENTRY OF JUDGMENT FILED BY**
PLAINITFF ON 8/19/2025
FILED BY:
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order Setting Aside and Vacating Its Prior Order of Dismissal and for Entry of Judgment Pursuant to Stipulation on August 19, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 19, 2025.

On November 19, 2025, the Court, *sua sponte*, reset the motion for hearing on December 9, 2025, notice of which was duly given to the parties by the Clerk of the Court. See Notice of Hearing dated November 21, 2025.

Background

The parties entered into that certain settlement agreement filed December 2, 2022 (the "Settlement Agreement"), the terms of which included payment by the defendant Jeffrey Krato ("Defendant") in the amount of \$18,811.61 plus costs of \$447.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Michael Mallonga filed August 19, 2025 ("Supporting Declaration"), ¶13 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶16. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶17.

After credit for amounts paid, there remains \$12,396.61 due and owing, plus costs of \$928.67, for a total of **\$13,325.28**. See Supporting Declaration, ¶¶9-10.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$12,396.61, plus costs of \$928.67, for a total judgment of **\$13,325.28**.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.